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TAB 7



Board of Education Report

File #: Rep-150-24/25, **Version:** 1

Authorization to Finalize Negotiations and Execute a Renewal License Agreement for Use of Radio Tower Space at Palos Verdes 1, Rancho Palos Verdes CA

January 14, 2025

Facilities Services Division

Action Proposed:

Authorize the Chief Facilities Executive and/or her designee(s), to execute a renewal license agreement (Agreement), and/or any other reasonable instruments, with American Tower Asset Sub, LLC, for an existing remote tower space located at 3690 East Crest Road in Rancho Palos Verdes. The tower provides radiofrequency transmission used for the radio communication system which is accessed by Los Angeles Unified School District (District) staff and operations in the southern portion of the District. The Agreement provides for a five-year term with three options to renew the term for a period of five years each. The total base rent of this Agreement over the total five-year term is \$1,027,743.97.

Background:

The District's radio communications are dependent upon antennas and microwave dishes attached to fixed radio towers located on multiple sites in and around Los Angeles County. Information Technology Services (ITS) and Los Angeles School Police Department (LASPD) have licensed a portion of the radio tower at 3690 East Crest Road since 1997, which was selected for its location and elevation to provide radio coverage to LASPD, Transportation Services Branch school bus operations, Facilities Services Division Maintenance and Operations, KLCS Public Media, the Gardena Bus Garage, several secondary schools, and a nutrition center in the South Bay area. Since the existing license agreement expired on August 1, 2024, the agreement has been operating and will operate on a month-to-month basis until a renewal agreement is executed.

The proposed Agreement has a five-year term with three (3) options to renew the term, each renewal term is for a period of five (5) years. The monthly base rent in the first year of the term will be \$15,785.68 and will be subject to an annual fixed increase of 4%. All other terms from the existing license agreement will apply to the renewal agreement.

The District is licensed by the Federal Communications Commission (FCC) to provide coverage using this site.

Expected Outcomes:

Approve and authorize the Chief Facilities Executive and/or her designee(s) to execute the Agreement and/or other reasonable instruments for tower space at Palos Verdes 1. The proposed Agreement will allow continued, safe, effective, reliable radio communication, which benefits all students and offices.

Board Options and Consequences:

If approved, the Chief Facilities Executive and/or her designee(s) will execute agreements necessary to keep radiofrequency transmission open for District communications.

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If the Board does not approve and authorize the proposed action, radio communication transmission from Palos Verdes 1 will no longer be made available and an alternative site will have to be identified to ensure that radio communication lines remain open. Any new site selected must be able to provide the same or better quality of radio coverage consistent with the current location and will require all radio tower equipment to be realigned and cleared for operation by both the Federal Communications Commission and Federal Aviation Administration prior to use.

Policy Implications:

The requested action is consistent with current District policy and advances the District 2022-2026 Strategic Plan Pillar 4 Operational Effectiveness Modernizing Infrastructure by continuing to provide use of radio tower space to support the District's radio communication infrastructure.

Budget Impact:

The first year of the Agreement will be for a monthly base rent payment of \$15,785.68. For each subsequent year, the base rent will increase by 4%. The proposed monthly rent is comprised of direct costs and market-based rent inclusive of, but not limited to, utilities, taxes, tower height, capacity, and administration of the Agreement. In the first year of the Agreement, the annual rent for the proposed use is anticipated to be approximately \$189,428.20. The following chart shows the anticipated annual rent for each year of the term:

Base Rent	Year 1	Year 2	Year 3	Year 4	Year 5
	\$189,428.20	\$197,415.02	\$205,311.62	\$213,524.08	\$222,065.05

Location: Palos Verdes Tower 1, 3690 East Crest Road, Rancho Palos Verdes, CA 90275

Landlord: American Tower Asset Sub, LLC, a Delaware Limited Liability Company

Rentable Area: Remote Tower Space and Radio Shelter

Term: Five years and three options to extend the term for a period of five years each term

Previous Base Rent: \$151,617.03 annually

Proposed Base Rent: Monthly base rent for one year is \$15,785.68 and is subject to the annual adjustment of 4%

The total base rent of this Agreement over the five-year term is \$1,027,743.97. Funding will be provided by the General Fund, Program Code 15125.

Student Impact:

The continued Agreement for the remote tower space will provide reliable radio-frequency bands for daily operations and provide information to help create safe secure environments for students across the District.

Equity Impact:

The existing radio tower space will be able to provide coverage to support District school police vehicles, school buses, truck operations, schools, and offices.

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Issues and Analysis:

The tower at Palos Verdes #1 has served the daily radio operations of the District since 1997. Given the ground terrain, elevation, slope, and tower infrastructure, staff finds the present site to be optimal to support current radio transmission needs.

Attachments:

Exhibit A - Fifth Amendment to License Agreement

Informatives:

None.

Submitted:

11/27/24

RESPECTFULLY SUBMITTED,



ALBERTO M. CARVALHO
Superintendent

APPROVED BY:



PEDRO SALCIDO
Deputy Superintendent
Business Services and Operations

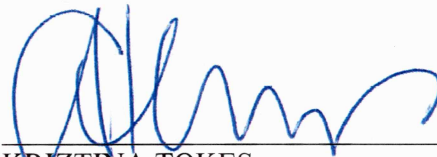
REVIEWED BY:



DEVORA NAVERA REED
General Counsel

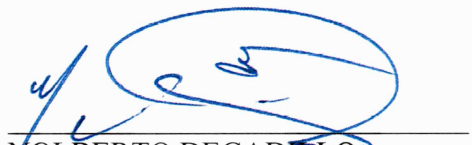
☒ Approved as to form.

APPROVED BY:



KRIZTINA TOKES
Chief Facilities Executive
Facilities Services Division

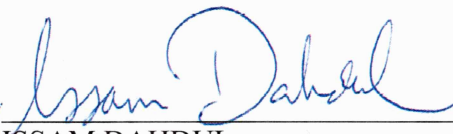
REVIEWED BY:



NOLBERTO DEGADILLO
Deputy Chief Financial Officer

☒ Approved as to budget impact statement.

PRESENTED BY:



ISSAM DAHDUL
Director of Facilities Planning &
Development
Facilities Services Division

Licensor Site Name/Number: Palos Verdes CA 1 / 301155

Licensor Contract Number: 216841

Licensee Site Name/Number: N/A / N/A

FIFTH AMENDMENT TO LICENSE AGREEMENT

This Fifth Amendment (the “Fifth Amendment”) to that certain License Agreement dated December 27, 2006 by and between American Tower Asset Sub, LLC, and Los Angeles Unified School District (the “License”), as amended by that certain First Amendment to License Agreement dated November 26, 2007, as amended by that certain Second Amendment to License Agreement dated June 29, 2010, as amended by that certain Third Amendment to License Agreement dated June 26, 2015, and as amended by that certain Fourth License Agreement dated February 20, 2020, (collectively, the “Agreement”) is made and entered into as of the latter signature date hereof, by and between American Tower Asset Sub, LLC, a Delaware limited liability company (the “Licensor”) and Los Angeles Unified School District, a school district duly organized and existing under the laws of the State of California (the “Licensee”) (collectively, the “Parties”).

RECITALS

WHEREAS, Licensor owns a certain communications tower on a certain parcel of land located at 3690 East Crest Road, Rancho Palos Verdes, CA 90275 more commonly known to Licensor as the Palos Verdes CA 1, CA tower site (the “Tower Facility”); and

WHEREAS, Licensor and Licensee entered into the Agreement for the use of a certain portion of the Tower Facility; and

WHEREAS, Licensee desires to modify its equipment at the Tower Facility (“Modified Equipment”); and

WHEREAS, the Parties agree that as consideration for Licensee’s Modified Equipment, the current Monthly License Fee payable under the Agreement shall be increased as set forth herein.

NOW THEREFORE, in consideration of the foregoing promises and for other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the Parties hereto agree as follows:

- 1) Licensor and Licensee agree to extend the term of the Agreement commencing on August 1, 2024, (the “Extension Term Commencement Date”) for a period of five (5) years (the “Extension Term”).
- 2) Immediately following the expiration of the Extension Term, there shall be three (3) additional renewal periods of five (5) years each (each a “Renewal Term”). The Agreement shall automatically renew for each successive Renewal Term unless

either Party notifies the other in writing of its intention not to renew this Agreement at least one hundred eighty (180) days prior to the end of the then existing term.

- 3) Effective as of full execution of this Fifth Amendment, the language set forth below in italics shall be added to the License as Other Provision (c) on page 1 of the License:

“In the event that no funds or insufficient funds are appropriated to Licensee or sufficient funds are otherwise unavailable to Licensee by any means whatsoever for payments pursuant to this Agreement in any fiscal period, Licensee shall immediately notify Licensor in writing of such occurrence and the Agreement shall terminate on the last day of the fiscal period for which sufficient appropriations have been received and made without penalty or expense to Licensee. Notwithstanding the foregoing, the effective date of any such termination shall not pre-date receipt of the notice of such termination by Licensor from Licensee.”

- 4) Licensor and Licensee agree and acknowledge that Licensee shall modify its equipment for a final installed configuration pursuant to Exhibit A-2.
- 5) Licensor and Licensee agree and acknowledge that Exhibit A-1 to the Agreement is hereby deleted in its entirety as of the date this Fifth Amendment is fully executed and shall be replaced with Exhibit A-2 attached hereto and incorporated by this reference. In the event of inconsistency or discrepancy between the Exhibit A-2 and Licensee’s equipment information set forth in the Agreement, the Exhibit A-2 shall control.
- 6) Licensor and Licensee agree and acknowledge that as of the date this Fifth Amendment is fully executed, Licensee’s site sketch set forth in the Agreement shall hereby be deleted in its entirety and shall be replaced with Exhibit B-1 attached hereto and incorporated by reference. In the event of inconsistency or discrepancy between the Exhibit B-1 and Licensee’s site sketch set forth in the Agreement, the Exhibit B-1 shall control.
- 7) Effective upon the earlier to occur of: i) the issue date of the NTP by Licensor; or ii) April 1, 2024 (“Commencement Date”), the Monthly License Fee shall be increased by Three Thousand Three Hundred Ninety-One and 72/100 Dollars (\$3,391.72) per month (“Increased Fee”). The Increased Fee for any fractional month at the beginning or end of the period shall be appropriately prorated.
- 8) Effective upon August 1, 2024, and each anniversary thereafter during the term, the Monthly License Fee shall be increased by four percent (4%) (“Annual Escalator”).
- 9) Notwithstanding anything to the contrary in the Agreement, the offer to Licensee expressed in this Fifth Amendment shall automatically become null and void with no further obligation by either party hereto if a structural analysis of the Tower Facility completed after the execution of this Fifth Amendment by Licensor but

Licensor Site Name/Number: Palos Verdes CA 1 / 301155

Licensor Contract Number: 216841

Licensee Site Name/Number: N/A / N/A

before the Commencement Date of the installation of Licensee's Modified Equipment indicates that the Tower Facility is not suitable for Licensee's Modified Equipment unless Licensor and Licensee mutually agree that structural modifications or repairs shall be made to the Tower Facility on mutually agreeable terms.

- 10) Licensor and Licensee agree and acknowledge that all future payments of the Monthly License Fee shall be made to the Licensor at the following remittance address:

American Tower Corporation
29637 Network Place
Chicago IL 60673-1296

- 11) The Parties agree that (i) a digital or electronic signature on this Fifth Amendment and/or (ii) a fully executed scanned or electronically reproduced copy or image of this Fifth Amendment shall be deemed an original and may be introduced or submitted in any action or proceeding as competent evidence of the execution, terms and existence hereof notwithstanding the failure or inability to produce or tender an original, manually executed counterpart of this Fifth Amendment and without the requirement that the unavailability of such original, manually executed counterpart of this Fifth Amendment first be proven.
- 12) Capitalized terms contained herein, unless otherwise defined, are intended to have the same meaning and effect as that set forth in the Agreement.
- 13) All other terms and provisions of the Agreement remain in full force and effect.

[SIGNATURES APPEAR ON THE NEXT PAGE]

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Licensor Site Name/Number: Palos Verdes CA 1 / 301155

Licensor Contract Number: 216841

Licensee Site Name/Number: N/A / N/A

IN WITNESS WHEREOF, the Parties hereto have set their hands to this Fifth Amendment to that certain License Agreement as of the day and year written below:

LICENSOR:

American Tower Asset Sub, LLC, a
Delaware limited liability company,

LICENSEE:

Los Angeles Unified School District, a
school district duly organized and existing
under the laws of the State of California

By: _____

By: _____

Name: _____

Name: _____

Title: _____

Title: _____

Date: _____

Date: _____

Exhibit A-2

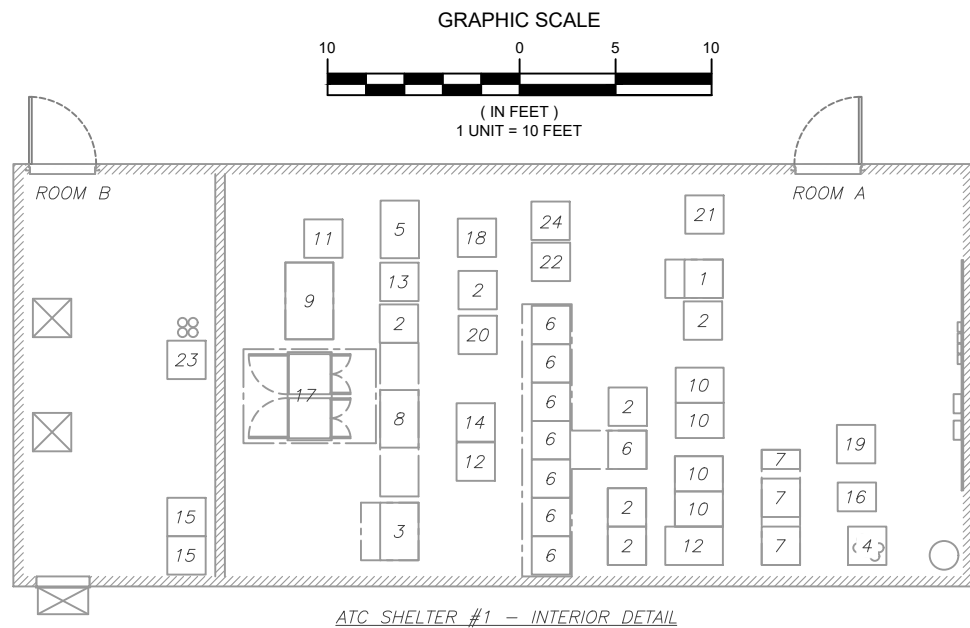
Customer Name: LA UNIFIED SCHOOL DISTRICT		ATC Asset Name: Palos Verdes CA 1		ATC Asset #: 301155		
Customer Site Name: N/A		Customer Site #: N/A				
GROUND SPACE REQUIREMENTS						
Total Lease Area	Sq. Ft: 44.00'	Primary Contiguous Lease Area		L:	W:	
ATC Building		2.00'	22.00'	N/A	Sq. Ft: 44.00	
Outside Primary Lease Area		N/A	N/A	N/A	Sq. Ft: N/A	
BACKUP POWER REQUIREMENTS						
Generator: N/A	Capacity(KW): N/A	Fuel Tank Size(gal): N/A	Fuel Type: N/A	Fuel Tank Setback(radius): N/A		
UTILITY REQUIREMENTS						
Power Provided By: American Tower Provided (Carrier to reimburse ATC) Avg. Monthly Power Consumption: 30.0 Kwh						
Telco/Interconnect: Copper						
Telco/Interconnect: Fiber Optics						
TRANSMITTER & RECEIVER SPECIFICATIONS						
Type: N/A	Quantity: N/A	TX Power(watts): N/A		ERP(watts): N/A		
EQUIPMENT SPECIFICATIONS						
Type	PANEL	DISH-STANDARD	DISH-HP	OMNI	OMNI	YAGI
Manufacturer	RFI Antennas	RFS	Commscope	Alive	Generic	Kathrein Scala
Model #	BPA7496-60-13	PAD8-65AC	VHLP6-6W-6WH/B	ATC-GC7V120-D4-NF	10' Omni	CL6-450B
Dimensions HxWxD	35.4" x 10.4" x 6"	8.00' x 8.00' x 1.60'	6.23' x 6.23' x 3.28'	204" x 4" x 4"	120" x 3" x 3"	17" x 29" x 12"
Weight(lbs.)	29.0	285.0	190.0	48.0	25.0	22.0
Location	Tower	Tower	Tower	Tower	Tower	Tower
RAD Center AGL	65.0'	65.0'	65.0'	65.0'	65.0'	65.0'
Equipment Tip Height	66.5'	69.0'	68.1'	73.5'	70.0'	65.7'
Equipment Base Height	63.5'	61.0'	61.9'	56.5'	60.0'	64.3'
Mount Type	Side Arm	Flush	Leg/Flush	Side Arm	Side Arm	Flush
Quantity	1	2	2	1	2	2
Azimuths/Dir. of Radiation	145	21.38/2.02	123/223	0	003	N/A
Quant. Per Azimuth/Sector	1	N/A	1/1	1	N/A	N/A
TX/RX Frequency Units	MHz	MHz	GHz	MHz	MHz	MHz
TX Frequency	747	6725	69999	747	853.3125,3375,3625,3875,4125	453.800,453.400
RX Frequency	747	N/A	69999	747	808.3125,3375,3625,3875,4125	458.800,458.300
Using Unlicensed Frequencies?	No	No	No	No	No	No
Equipment Gain	11	39.5/ 40/ 40.4	N/A	11.5 dBd	5	6.4
Total # of Lines	1	1	0	1	2	2
Line Quant. Per Azimuth/Sector	1	N/A	N/A	1	N/A	N/A
Line Type	Coax	Coax	N/A	Coax	Coax	Coax
Line Diameter Size	7/8" Coax	1/2" Coax	N/A	7/8" Coax	7/8" Coax	7/8" Coax
Line Configuration	N/A	N/A	N/A	N/A	N/A	N/A

Exhibit A-2

EQUIPMENT SPECIFICATIONS						
Type	N/A	N/A	N/A	N/A	N/A	N/A
Manufacturer	N/A	N/A	N/A	N/A	N/A	N/A
Model #	N/A	N/A	N/A	N/A	N/A	N/A
Dimensions HxWxD	N/A	N/A	N/A	N/A	N/A	N/A
Weight(lbs.)	N/A	N/A	N/A	N/A	N/A	N/A
Location	Tower	N/A	N/A	N/A	N/A	N/A
RAD Center AGL	65.0'	N/A	N/A	N/A	N/A	N/A
Equipment Tip Height	N/A	N/A	N/A	N/A	N/A	N/A
Equipment Base Height	N/A	N/A	N/A	N/A	N/A	N/A
Mount Type	N/A	N/A	N/A	N/A	N/A	N/A
Quantity	N/A	N/A	N/A	N/A	N/A	N/A
Azimuths/Dir. of Radiation	N/A	N/A	N/A	N/A	N/A	N/A
Quant. Per Azimuth/Sector	N/A	N/A	N/A	N/A	N/A	N/A
TX/RX Frequency Units	N/A	N/A	N/A	N/A	N/A	N/A
TX Frequency	N/A	N/A	N/A	N/A	N/A	N/A
RX Frequency	N/A	N/A	N/A	N/A	N/A	N/A
Using Unlicensed Frequencies?	No	N/A	N/A	N/A	N/A	N/A
Equipment Gain	N/A	N/A	N/A	N/A	N/A	N/A
Total # of Lines	1	N/A	N/A	N/A	N/A	N/A
Line Quant. Per Azimuth/Sector	N/A	N/A	N/A	N/A	N/A	N/A
Line Type	Elliptical	N/A	N/A	N/A	N/A	N/A
Line Diameter Size	EW52	N/A	N/A	N/A	N/A	N/A
Line Configuration	N/A	N/A	N/A	N/A	N/A	N/A

OAA782740

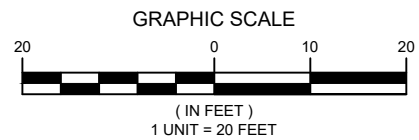
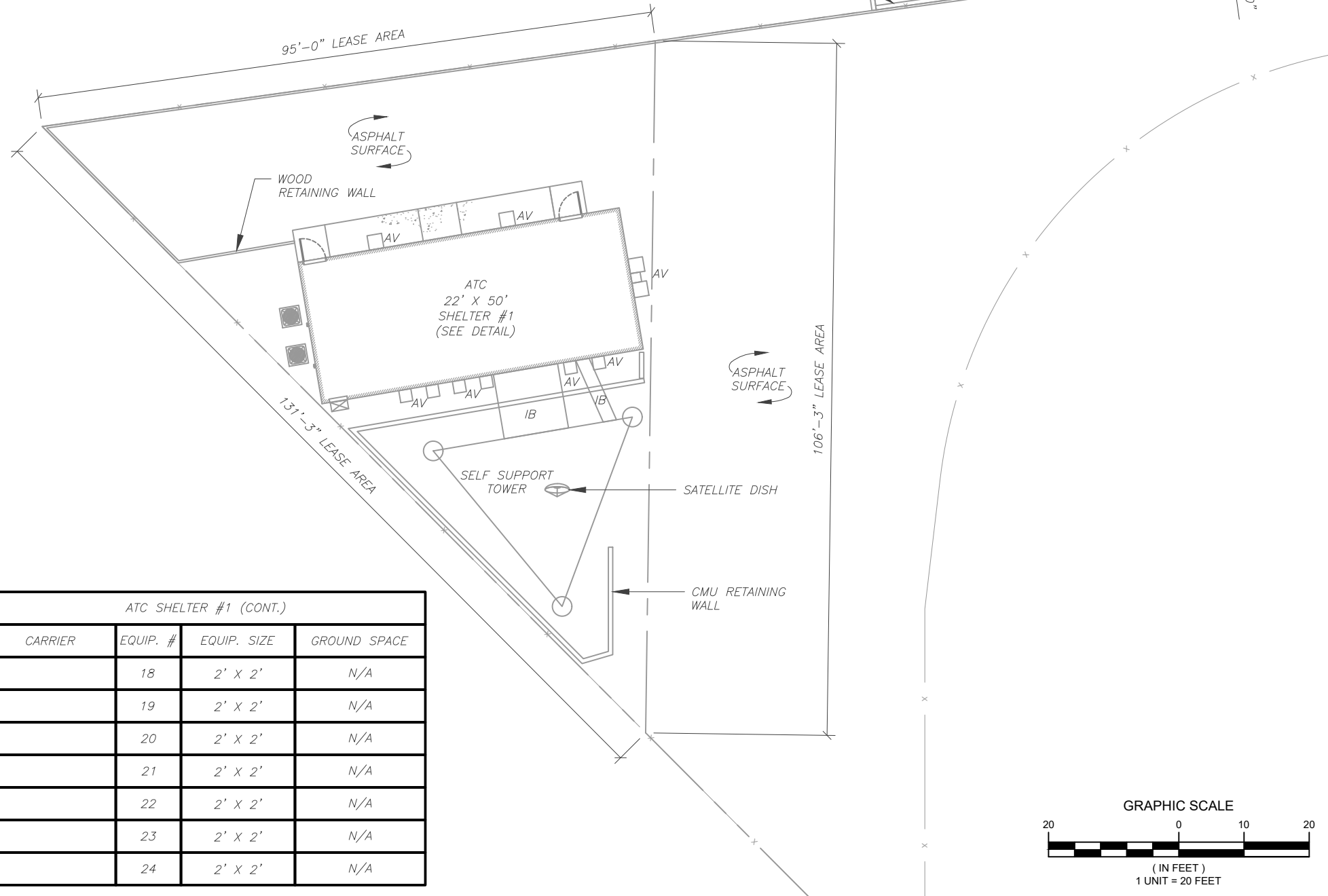
Exhibit B-1



ATC SHELTER #1 - INTERIOR DETAIL

ATC SHELTER #1			
CARRIER	EQUIP. #	EQUIP. SIZE	GROUND SPACE
	1	N/A	2' X 3'
	N/A	N/A	2' X 2'
	2	(5) 2' X 2'	2' X 4'
	N/A	N/A	2' X 2'
	N/A	N/A	2' X 2'
	N/A	N/A	4' X 4'
	N/A	N/A	2' X 4'
	3	2' X 3'	3' X 3'
	4	N/A	2' X 2'
	N/A	N/A	(ABANDONED)
	N/A	N/A	2' X 2'
	5	2' X 3'	2' X 3'
LA UNIFIED SD	6	(8) 2' X 2	44 SQ. FT.
	N/A	N/A	2' X 2'
	7	N/A	2' X 6'
	8	2' X 3'	2' X 8'
	9	2-6" X 4'-0"	2-6" X 4'-0"
	10	(4) 1-10" X 2'-6"	2'-6" X 3'-8"
	11	2' X 2'	(ABANDONED)
	12	2' X 2' & 2' X 3'	(ABANDONED)
	14	2' X 2'	(ABANDONED)
ATC - COMBINER	13	2' X 2'	N/A
	15	(2) 2' X 2'	N/A
	16	1'-6" X 2'-0"	N/A
HARRIS CORP.	17	N/A	4'-11" X 6'-11"

ATC SHELTER #1 (CONT.)			
CARRIER	EQUIP. #	EQUIP. SIZE	GROUND SPACE
	18	2' X 2'	N/A
	19	2' X 2'	N/A
	20	2' X 2'	N/A
	21	2' X 2'	N/A
	22	2' X 2'	N/A
	23	2' X 2'	N/A
	24	2' X 2'	N/A



AMERICAN TOWER®
A.T. ENGINEERING SERVICE, PLLC
3500 REGENCY PARKWAY
SUITE 100
CARY, NC 27518
PHONE: (919) 466-0112

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ATC SITE NUMBER:

301155

ATC SITE NAME:

PALOS VERDES CA 1
CALIFORNIA

LEGEND

X	GROUNDING TEST WELL
AV	AIR VENT
ATS	AUTOMATIC TRANSFER SWITCH
B	BOLLARD
C	CABINET
CS	COAX SHROUD
CSC	CELL SITE CABINET
D	DISCONNECT
E	ELECTRICAL
F	FIBER
GEN	GENERATOR
G	GENERATOR RECEPTACLE
HH, V	HAND HOLE, VAULT
HFC	HYDROGEN FUEL CELL
HSM	HYDROGEN STORAGE MATERIAL
IB	ICE BRIDGE
K	KENTROX BOX
LC	LIGHTING CONTROL
LPG	LIQUID PROPANE GAS
M	METER
MTS	MANUAL TRANSFER SWITCH
OHW	OVERHEAD WIRE
P	POWER
PP	POWER POLE
T	TELCO
TRN	TRANSFORMER
-----	BUFFER (PROPERTY LINE)
-----	GROUND SPACE (LEASE AREA)
-----	EASEMENT

DRAWN BY:	M. GOOCH
DATE DRAWN:	10/19/2022
CUSTOMER:	LA UNIFIED SD
ATC PROJECT NO.:	OAA782740
ATC ASSET NO.:	301155

SITE PLAN LAYOUT

SHEET NUMBER:	AUDITED BY
SITE-1	VK
	ON
	03/21/16